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Case Number: 25STCV04148 Hearing Date: August 20, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Judgment

The Motion for Summary Judgment, or in the alternative, Summary Adjudication, is denied.

BACKGROUND

Plaintiff Catherine Morgenweck, individually and as successor in interest to the estate of Frank Guzman (Plaintiff), filed this action against General Motors LLC (GM), alleging that a 2021 Gmc Sierra 1500 (the Subject Vehicle) sold as a certified pre-owned vehicle manifested defects covered by an express written warranty.

The causes of action in the Second Amended Complaint (SAC) are: (1) Violation of Civil Code Section 1793.2, Subdivision (d), and Section 1795.5; (2) Violation of Civil Code Section 1793.2, Subdivision (b); (3) Violation of Civil Code Section 1793.2, Subdivision (a)(3); and (4) Breach of the Implied Warranty of Merchantability.

On December 18, 2025, the Court granted GM's Motion for Judgment on the Pleadings with leave to amend. The Court concluded that the Subject Vehicle is not a new motor vehicle under the Song-Beverly Consumer Warranty Act. It concluded as well that GM may be liable as a retailer of used goods, because Plaintiff alleged GM issued an express written warranty at the time of sale. The pleading failed because Plaintiff had neither pleaded nor supported her successor-in-interest status. On April 9, 2026, the Court overruled GM's Demurrer to the SAC and denied the accompanying Motion to Strike.

GM filed a Motion for Summary Judgment or, in the alternative, Summary Adjudication. Plaintiff filed an Opposition.

REQUEST FOR JUDICIAL NOTICE

GM requests judicial notice of an August 30, 2024 Assembly Judiciary Committee analysis of Assembly Bill 1755 (Exhibit 1), this Court's December 18, 2025 and April 9, 2026 minute orders (Exhibits 2 and 3), the Retail Installment Sale Contract for the Subject Vehicle (Exhibit 4), and a California Certificate of Title (Exhibit 5). The Court grants the request as to Exhibits 2 and 3. (Evid. Code, § 452, subd. (d).) The Court declines to notice Exhibit 1. A committee analysis is noticeable as a legislative record (Evid. Code, § 452, subd. (c)), but the disposition does not require it, and a 2024 analysis comes decades after the Legislature enacted the definition the Motion asks the Court to construe. "[P]ost-enactment legislative history (a contradiction in terms) is not a legitimate tool of statutory interpretation." (Coker v. JPMorgan Chase Bank, N.A. (2016) 62 Cal.4th 667, 690, quoting Bruesewitz v. Wyeth LLC (2011) 562 U.S. 223, 242). The Court declines to notice Exhibits 4 and 5, which the disposition does not require and which are before the Court as evidence in any event. (Wynsma Decl., ¶¶ 4, 5, Exs. C, D.)

Plaintiff requests judicial notice of a certified pre-owned benefits brochure downloaded from GM's website (Exhibit 1) and two certified pre-owned documents she produced from her late husband's papers (Exhibits 2 and 3). The request is denied. Plaintiff offers the brochure for the truth of what it says about the coverage GM provides. That is not a matter of common knowledge, and it is not capable of immediate and accurate determination by resort to sources of indisputable accuracy. (Evid. Code, § 452, subd. (h).) Exhibits 2 and 3 are private documents outside the scope of Evidence Code section 452. Plaintiff also submitted both as evidence, and the disposition does not require them.

EVIDENTIARY OBJECTIONS

The Court rules only on the objections material to the disposition. (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff's objections to GM's evidence:

Objection 1. Sustained as to the statement in paragraph 5 of the Wynsma Declaration that the California Certificate of Title shows “the transfer of title to Plaintiff Catherine Morgenweck on October 22, 2024,” and overruled as to the identification of Exhibit D. Counsel established no basis to say in what capacity Plaintiff signed the certificate. (Evid. Code, § 702.)

Objection 2. Overruled. GM produced Jorge Diaz as its person most qualified, on topics including the warranties that accompanied the Subject Vehicle at the time of sale, and a party may support its motion with deposition testimony. (Wynsma Decl., ¶ 7; Code Civ. Proc., § 437c, subd. (b)(1).)

Objection 5. Overruled. Jensen established his familiarity with GM’s repair order and warranty records, and paragraph 6 identifies Repair Order No. 6127781 and states the dates it opened and closed. (Jensen Decl., ¶ 3; Evid. Code, § 702.)

LEGAL STANDARD

A party is entitled to summary judgment only if there is no triable issue of material fact and the party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A moving “defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) The moving party bears the burden of persuasion that there is no triable issue of material fact and that it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)

To show that a plaintiff cannot establish an element, a defendant must show that “the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar*, *supra*, 25 Cal.4th at p. 854.) Once the defendant meets that burden, the plaintiff must set forth specific facts showing that a triable issue of material fact exists. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court considers all the evidence except that to which it has sustained an objection, and draws all reasonable inferences from that evidence in the light most favorable to the opposing party. (*Avivi v. Centro Medico*

Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Summary adjudication proceeds under the same standard and may be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

ANALYSIS

I. Separate Statement

Plaintiff argues that the Motion should be denied because the Notice and the Separate Statement do not comply with California Rules of Court, rule 3.1350. (Opp., pp. 1:3 - 3:19.) Rule 3.1350(b) requires the specific cause of action to be adjudicated to be stated in the notice of motion and repeated verbatim in the separate statement, and rule 3.1350(d)(1) requires the separate statement to identify each cause of action separately, with the material facts claimed to be undisputed as to each. GM's Notice asks for judgment on Counts I through IV on two stated grounds and identifies no cause of action for separate adjudication. (Notice of Motion, p. 1:6-14.) Its Separate Statement divides twenty-one facts between two issues, the second of which gathers all four causes of action under the proposition that Plaintiff cannot show GM breached any warranties. Neither document repeats the language of the other, and neither ties a fact to the elements of any claim.

Failure to comply "may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) The requirement is not a formality, because the separate statement is where the moving party states the facts it contends are undisputed and the opposing party learns what it must dispute. (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.) It is not an absolute rule of exclusion either. Whether to consider evidence a separate statement does not reference rests in the trial court's discretion. (San Diego Watercrafts, Inc. v. Wells Fargo Bank (2002) 102 Cal.App.4th 308, 316.) That discretion governs which evidence the Court may consider, and it does not substitute for a ground the movant chose not to argue. A court may reach the merits despite a rule 3.1350 violation where the opposing party knew of the ground, addressed it on the merits, and was not impaired by the defect from marshalling evidence of disputed facts. (Holt v. Brock (2022) 85 Cal.App.5th 611, 619-620.) Plaintiff identified both grounds, answered each of the twenty-one facts, and

opposed the Motion on the merits. The Court declines to deny the Motion on this ground and decides it on the whole evidentiary record GM submitted.

II. New Motor Vehicle

GM argues that Plaintiff's Song-Beverly claims fail because the Subject Vehicle is not a new motor vehicle. (Mot., p. 4:16-25.) The Act defines a new motor vehicle to include "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty." (Civ. Code, § 1793.22, subd. (e)(2).) "[F]or the reasons above, we hold that the phrase 'other motor vehicle sold with a manufacturer's new car warranty' ... means a vehicle for which a manufacturer's new car warranty is issued with the sale." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 206 (Rodriguez).) The reasoning turns on the two examples the definition supplies. "By specifically mentioning dealer-owned vehicles and demonstrators, the Legislature highlighted vehicles for which a manufacturer's new car warranty arises upon sale to a retail buyer. Thus, the phrase 'other motor vehicle sold with a manufacturer's new car warranty' is most naturally understood to mean other vehicles for which such a warranty is issued with the sale." (Id. at pp. 199-200.)

Plaintiff responds that a certified pre-owned warranty issued with the sale satisfies the definition. (Opp., pp. 8:23 - 9:11.) The two statutory examples share one feature. Neither vehicle has been sold at retail before, so the manufacturer's new car warranty first arises on that sale. Mileage is not the distinction, because a demonstrator has been driven and a dealer-owned vehicle has been titled. Here, the Subject Vehicle was first sold and titled in Michigan on November 2, 2021 as a commercial vehicle, and the vehicle history report shows two previous owners before Guzman bought it on June 13, 2023 with 17,196 miles on the odometer. (Wynsma Decl., ¶ 3, Ex. B.) A manufacturer's new car warranty had already arisen on that first retail sale (Wynsma Decl., ¶ 3, Ex. B), and it was still running when Guzman bought the truck (Wynsma Decl., ¶ 8, Ex. G). Coverage sold at that point is coverage on a used car, whatever its terms. It is not a manufacturer's new car warranty. The Court concludes, as it concluded on December 18, 2025, that the Subject Vehicle is not a new motor vehicle within the meaning of section 1793.22, subdivision (e)(2).

Kiluk found it unnecessary to decide whether a certified pre-owned vehicle is a new motor vehicle, because "even if the vehicle was not a 'new motor vehicle' under [the] Song-Beverly Act, Mercedes Benz was still liable under the used goods provisions of section 1795.5." (Kiluk v.

Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340 (Kiluk).)

The same is true here. Subdivisions (d)(1), (b), and (a)(3) of section 1793.2, and section 1795.5 itself, do not turn on the definition, so the fact that it was not a new motor vehicle disposes of no cause of action. The enhanced remedies of subdivision (d)(2) are not among the items a party may have summarily adjudicated. (Code Civ. Proc., § 437c, subd. (f)(1).)

III. Retailer Status

GM maintains that it owes a used-vehicle buyer no obligation under the Act, on two grounds. It says it issued no new vehicle express warranty, and it says Plaintiff “offers no evidence ... showing that GM issued any new vehicle express warranty at the time of Mr. Guzman’s purchase.” (Mot., pp. 4:26 - 5:23; id. at p. 5:15-17.) In reply it states the point more broadly, that Rodriguez disposes of the first three causes of action before any question of repair history arises. (Reply, p. 3:12-18.) Rodriguez construed the definition of a new motor vehicle and decided the availability of the remedies that definition governs. It did not hold that the buyer of used goods may never proceed against a warrantor whose obligations arise under Civil Code section 1795.5.

Section 1795.5 provides that “the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter,” subject to exceptions. (Civ. Code, § 1795.5.) For used goods, “liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (Rodriguez, *supra*, 17 Cal.5th at p. 201.) That qualifier is deliberate, and the Supreme Court attached to it a citation to Kiluk, which holds that a manufacturer that joins with a dealership to sell used vehicles to the public and provides an express warranty as part of the sales package occupies the retailer’s position and owes the retailer’s obligations under section 1795.5. (Ibid.; Kiluk, *supra*, 43 Cal.App.5th at p. 340.)

GM emphasizes that it sold nothing to Guzman, and the Act’s protections ordinarily run against the party that both sold the goods and issued the express warranty. The manufacturer in Kiluk had not sold the vehicle either, and the Supreme Court cited Kiluk for the exception rather than against it. Nunez, which GM itself invokes, states its holding

with the same limit: under the Act “only distributors and retail sellers, not manufacturers, are liable for breach of implied warranties in the sale of a used car where, as here, the manufacturer did not offer the used car for sale to the public.” (Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 389.)

The Motion therefore must show that GM neither offered this truck to the public through its certified pre-owned program nor supplied that program’s coverage.

GM contends the dealer issued that coverage. Its Separate Statement asserts that GM “did not issue a new vehicle warranty in connection with the sale of the Subject Vehicle to Frank Guzman on June 13, 2023, and only added a dealer-issued 12-month or 12,000-mile bumper-to-bumper limited warranty and a 2-year or 24,000-mile CPO Scheduled Maintenance Plan.” (Separate Statement, UMF Nos. 3, 8.) The Reply says the same. (Reply, p. 2:19-21.)

The evidence GM cites will not establish the contention. GM’s person most qualified described the coverage in terms a trier of fact could attribute to GM. Examined by GM’s counsel about the certified pre-owned document, he said the first of its two warranties is “specified from the original in-service date,” which “means when the vehicle started with the first customer,” and adds “another year” to the five-year, 100,000-mile powertrain warranty. (Wynsma Decl., ¶ 7, Ex. F (Diaz Depo., p. 63:6-13).) The second, he said, “is 12 months or 12,000 miles bumper to bumper from the date of purchase as a certified pre-owned.” (Ibid. (Diaz Depo., p. 63:16-18).) He learned what the coverage entails “in our global warranty documents.” (Ibid. (Diaz Depo., p. 67:1-2).) He testified that GM publishes no separate certified pre-owned warranty booklet, and that “[t]he main warranty booklet that comes with the vehicle applies to the certified pre-owned, too.” (Ibid. (Diaz Depo., p. 18:23-25).) Asked whether “the certified pre-owned warranty [was] issued to the plaintiff at the time of sale of the subject vehicle,” he answered, “Yes.” (Ibid. (Diaz Depo., pp. 25:23 - 26:1).) Asked later whether the coverage “is given to the customer at the time of sale of the vehicle,” he answered, “Correct.” (Ibid. (Diaz Depo., p. 67:10-13).) Diaz also reviewed “the one-page document that was provided to the customer by the dealer related to the certified pre-owned warranty document.” (Ibid. (Diaz Depo., p. 18:16-18).)

The Used Vehicle Buyer’s Guide does not establish the contention either. The form bears the Subject Vehicle’s identification number, and GM’s counsel describes it as “reflecting that the Subject Vehicle was sold with ‘Implied Warranties Only’ and without any express dealer warranty.” (Wynsma Decl., ¶ 8,

Ex. G.) The description is accurate, and it works against a dealer-issued warranty. In the block for dealer warranties the box checked is "IMPLIED WARRANTIES ONLY," beside printed text stating that the dealer "doesn't make any promises to fix things that need repair when you buy the vehicle or afterward," and the form records the additional coverage in the block headed "NON-DEALER WARRANTIES FOR THIS VEHICLE," where "MANUFACTURER'S WARRANTY STILL APPLIES" and "OTHER USED VEHICLE WARRANTY APPLIES" are checked. (Ibid.) The blank box for "MANUFACTURER'S USED VEHICLE WARRANTY APPLIES" is the best evidence GM has. A blank box on a disclosure form does not identify the issuer of coverage the form itself places outside the dealer's warranties.

GM's designee described coverage that GM's warranty documents define, that GM's warranty booklet covers, and that runs from the date of the certified pre-owned purchase, and GM's own form places that coverage outside the dealer's warranties. Drawing the reasonable inferences in Plaintiff's favor, GM has not established that it issued no express warranty in connection with this sale.

GM's second ground fails with the first. A defendant may carry its burden by showing that "the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar, supra, 25 Cal.4th at p. 854.) The burden never shifted. That testimony came from GM's own person most qualified, in a transcript GM submitted with the Motion, and a plaintiff may resist summary judgment on the moving party's evidence.

GM says the Court has rejected Plaintiff's theory twice. (Reply, p. 3:19-25.) It has not. The December 18, 2025 order held that the Subject Vehicle is not a new motor vehicle and held in the same order that GM may be liable as a retailer under section 1795.5 if it issued an express warranty in conjunction with the sale. The April 9, 2026 order overruled GM's demurrer to the implied warranty claim on that same reasoning and held that Rodriguez had not disapproved Kiluk.

GM has not carried its initial burden to show that it stood outside section 1795.5 as a matter of law, and summary judgment on that ground is unavailable. GM's remaining grounds are pleaded independently of retailer status, and the Court reaches them.

IV. Repair Attempts

GM argues that Plaintiff cannot establish the first cause of action

because the Subject Vehicle was never presented twice for the same defect. (Mot., p. 6:3-25.) A plaintiff proceeding under the Act must prove “that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (Oregel v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1101.)

The statute imposes no same-nonconformity requirement. It asks whether the warrantor “does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts.” (Civ. Code, § 1793.2, subd. (d)(1).) The same-nonconformity language appears in the presumption provisions, now at section 1793.22, subdivision (b), and those provisions supply presumptive standards and not elements. “Neither 30 days in the shop nor 4 unsuccessful attempts at repairing a problem conclusively proves an entitlement to the remedy alternatives of subdivision (d). ... [T]hese are only markers on the path of reasonableness that the trier of fact must tread.” (Ibrahim v. Ford Motor Co. (1989) 214 Cal.App.3d 878, 886-887.) Ibrahim settles that the criteria are presumptive. No California decision the parties cite answers whether attempts directed at different nonconformities count together. The statutory text does. The Legislature used the narrower phrase where it meant it, and subdivision (d)(1) asks about the goods.

“‘Attempts’ is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.) A claim under subdivision (d) therefore fails if the warrantor received one opportunity, whatever the vehicle's condition afterward. The Court accordingly decides how many opportunities GM received.

Here, the Subject Vehicle was presented for service five times. On June 20, 2023, at 18,074 miles, Guzman reported that the trailer lights stayed on after the truck was shut off and that the trailer brakes locked up when the truck's brakes were not applied. (Wynsma Decl., ¶ 10, Ex. I.) The dealership verified that the trailer brakes were inoperative at times because of an internal module failure, and replaced the trailer brake control module and the trailer lamp control module under warranty. (Wynsma Decl., ¶ 10, Ex. I; Jensen

Decl., ¶ 6, Ex. O; id., ¶ 11, Ex. T.) On October 7, 2023, at 23,684 miles, the dealership replaced the tire pressure indicator sensor. (Jensen Decl., ¶ 7, Ex. P.)

GM's Separate Statement calls the October visit routine maintenance. (Separate Statement, UMF No. 13.) GM's own warranty history says otherwise. Jensen describes Exhibit T as GM's record of service presentations, "including customer complaints, mileage at presentation, date of presentation, and labor performed." (Jensen Decl., ¶ 11.) That exhibit records the October visit as two transactions. One, the certified pre-owned oil change, tire rotation, and inspection, is coded "No Customer Complaint - Maintenance." The other is coded "352-Tires/Wheels-Tire Pressure," bears the labor operation "Tire Pressure Indicator Sensor Replacement," names the sensor as the causal part, and is charged to the warranty expense category. (Id., ¶ 11, Ex. T.) The June job card is coded "0590-Features/Controls/Displays - Other issues" and records the two module replacements. (Ibid.; Pengilley Decl., ¶ 3, Ex. 2.) GM now calls both visits warranty repairs. (Reply, p. 4:20-23.)

A customer complaint about tire pressure, answered by a warranty replacement of the sensor, is an opportunity to repair. GM has not established that it received fewer than two opportunities, and Silvio does not decide the claim. Whether two opportunities within four months of the sale is a reasonable number is a question of fact. (Ibrahim, *supra*, 214 Cal.App.3d at pp. 886-887.)

GM's evidence on conformity is that the trailer brake module was replaced, that the Subject Vehicle was never returned for that concern, and that it ran roughly 21,500 further miles before Plaintiff sold it. (Separate Statement, UMF Nos. 10-12, 19; Wynsma Decl., ¶ 10, Ex. I; id., ¶ 6, Ex. E.) A trier of fact may weigh that evidence. It does not establish conformity as a matter of law, because a buyer who stops returning the vehicle has not thereby received a conforming one, and the Act asks the buyer only to permit a reasonable opportunity to repair. (Oregel, *supra*, 90 Cal.App.4th at pp. 1103-1104.) Accordingly, the Motion for Summary Adjudication of the first cause of action is denied.

V. Repair Timeliness

GM challenges the second cause of action on the ground that no single repair took more than thirty days. (Mot., pp. 6:26 - 7:11.) Section 1793.2,

subdivision (b) imposes two obligations. Repairs “shall be commenced within a reasonable time,” and, unless the buyer agrees in writing to the contrary, “the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Civ. Code, § 1793.2, subd. (b).) The SAC pleads a violation of both. (SAC, ¶¶ 22, 23.)

GM addresses the second obligation and leaves the first alone. Its memorandum argues only that no repair visit exceeded thirty days, and its Separate Statement states no fact about when any repair was commenced relative to the request for it. In reply GM says that facts 10 through 18 “establish when they were opened and closed.” (Reply, p. 4:10-13.) Opening and closing dates show how long a repair order stayed open. They do not show when service began relative to a customer’s request, and GM does not argue that they do.

Summary adjudication may be granted only if it completely disposes of a cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A showing aimed at one of two independent statutory obligations does not dispose of a claim resting on both. The Court therefore takes no position on how the thirty-day requirement is measured. Accordingly, the Motion for Summary Adjudication of the second cause of action is denied.

VI. Service Literature

GM contends that Plaintiff cannot establish the third cause of action because no repair was delayed by unavailable parts or service literature. (Mot., p. 7:12-25.) Section 1793.2, subdivision (a)(3) requires a warrantor to “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” The obligation runs to the warrantor’s authorized facilities and lasts through the express warranty period.

GM offers two things. The first is that the June 2023 repair closed within a week “with no recorded delay attributable to parts unavailability or inadequate service literature.” (Mot., p. 7:17-20.) That a repair closed without a recorded delay says nothing about what GM made available to its authorized facilities over the life of the warranty. The second is Plaintiff’s deposition testimony that she is unaware of any service presentation beyond the five in the repair records. (Wynsma Decl., ¶ 2, Ex. A (Pl. Depo., p. 35:1-5).) A defendant may carry its burden that way. It “may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence,

as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Aguilar, *supra*, 25 Cal.4th at p. 854.) The admission has to bear on the element, and this one does not. Plaintiff testified that she knows of no other service visit. She did not testify that discovery has turned up nothing on GM’s parts and literature distribution, and she was not the buyer of the Subject Vehicle. The burden never shifted. Accordingly, the Motion for Summary Adjudication of the third cause of action is denied.

VII. Merchantability

GM raises two grounds against the fourth cause of action. The first is that the implied warranty had run before any defect appeared. The second is that the Subject Vehicle was merchantable. (Mot., pp. 7:26 - 8:21.) It adds in reply that a manufacturer owes no implied warranty on a used vehicle it did not sell. (Reply, p. 6:2-4.) That last ground fails for the reasons already given.

GM invokes the one-year ceiling that section 1791.1, subdivision (c) sets for new consumer goods. The sale of used consumer goods accompanied by an express warranty carries an implied warranty of merchantability coextensive in duration with that express warranty, and in no event shorter than thirty days or longer than three months following the sale. (Civ. Code, § 1795.5, subd. (c).) Neither period assists GM, because the nonconformity Plaintiff identifies appeared seven days after the sale.

Merchantable goods “[p]ass without objection in the trade under the contract description” and “[a]re fit for the ordinary purposes for which such goods are used.” (Civ. Code, § 1791.1, subd. (a).) The warranty does not “impose a general requirement that goods precisely fulfill the expectation of the buyer. Instead, it provides for a minimum level of quality.” (American Suzuki Motor Corp. v. Superior Court (1995) 37 Cal.App.4th 1291, 1296.) GM’s showing is that Guzman drove the Subject Vehicle for sixteen months and more than 22,000 miles (Wynsma Decl., ¶ 3, Ex. B), and that Plaintiff sold it on October 22, 2024 (Wynsma Decl., ¶ 6, Ex. E). Here, seven days after the sale, the dealership verified that the trailer brakes on this pickup were inoperative at times because of an internal module failure. (Wynsma Decl., ¶ 10, Ex. I.) The defect concerned the truck’s capacity to tow safely. Whether a pickup whose trailer brakes fail intermittently within a week of sale passes without objection in the trade, or is fit for the ordinary purposes a pickup serves, is a question the trier of fact must answer on all the circumstances. Accordingly,

the Motion for Summary Adjudication of the fourth cause of action is denied.

VIII. Leave to Amend

GM asks the Court to bar Plaintiff from amending her pleading a third time. (Mot., pp. 8:22 - 9:8.) Plaintiff has filed no motion for leave to amend, and this ruling leaves the SAC as the operative pleading. The request is denied. GM does not dispute that Plaintiff may prosecute her late husband's survival claims as his successor in interest. (Reply, p. 6:19-20.)

CONCLUSION

The Motion for Summary Judgment, or in the alternative, Summary Adjudication, is denied.